

24STCV04204 24STCV04204

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-01

Motion: DEFENDANT JAJ1, LLC'S NOTICE OF MOTION AND SPECIAL MOTION TO STRIKE THE COMPLAINT OF KATHERINE D. KELLER FOR MALICIOUS PROSECUTION AND VIOLATION OF THE BANE ACT PURSUANT TO CODE OF CIVIL PROCEDURE § 425.16

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Case Number: 24STCV04204 Hearing Date: September 1, 2026 Dept: 731

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS

ANGELES - CENTRAL DISTRICT

KATHERINE KELLER,

Plaintiff,

vs.

JEANETTE ANN BISNO, an

individual; ROBERT H. BISNO, an individual; LAW OFFICE OF ROBERT H. BISNO, a business organization, unknown form; BISNO MANAGEMENT COMPANY, LLC, a California Limited Liability Company; BISNO DEVELOPMENT ENTERPRISE, LLC, a California Limited Liability Company; THE BISNO FAMILY LIMITED PARTNERSHIP, a California Limited Partnership; BISNO REAL ESTATE GROUP, LLC, a California Limited Liability Company; and DOES 1 to 100,

Defendant(s).

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CASE NO: 24STCV04204

[TENTATIVE] ORDER RE:

DEFENDANT JAJ1, LLC'S NOTICE OF MOTION AND

SPECIAL MOTION TO STRIKE THE

COMPLAINT OF KATHERINE D. KELLER FOR MALICIOUS PROSECUTION AND VIOLATION OF

THE BANE ACT PURSUANT TO CODE OF CIVIL PROCEDURE § 425.16

Dept. 731

September 1, 2026

8:30 a.m.

Matter No. 13

Moving Party: Defendant JAJ1, LLC

Opposing Party: Plaintiff, Katherine Keller

Notice: OK

Before the Court is Defendant Doe 1

JAJ1, LLC's June 1, 2026, anti-SLAPP motion (CRS No. 663839362975) against the Complaint's two causes of action, which are alleged against it by way of alter ego liability.

The record shows that Plaintiff filed an opposition with a request for judicial notice on August 13, 2026.

After review, though not directly raised in the opposition, and as found by the Court in relation to an identical motion disposed of on July 14, 2026, the Court DENIES Defendant's motion for lack of proper notice and identification of claims at issue in this anti-SLAPP motion.

To meet its burden under the anti-SLAPP statute, a defendant must identify all allegations of protected activity and all claims for relief that arise from the defendant's protected acts. (Baral v. Schnitt (2016) 1 Cal.5th 376, 384.) In a recent court of appeal opinion, the court held that a Defendant did not meet its identification burden when the motion listed page and line numbers to strike, but those numbers simply corresponded to prayer for relief and all of complaint's causes of action in their entirety. (Littlefield v. Littlefield (Nov. 15, 2024) 106 Cal.App.5th 815, 826.)

Here, Defendant's notice of motion and memorandum go defectively further, neither identifying page numbers nor

lines to challenge on anti-SLAPP. This is fatal because, on an anti-SLAPP motion, each claim must be identified, regardless of whether all or only some of the claims in a count—often and confusingly for anti-SLAPP purposes referred to by counsel as “cause of action,” e.g., first, second, third cause of action—are being challenged. (See *Bonni v. St. Joseph Health Sys.* (2021) 11 Cal.5th 995, 1010-1011 (Bonni).) Stated otherwise, following Bonni, it is clear that in ruling on an anti-SLAPP motion, the Court is analyzing each separate claim for relief within challenged counts (usually identified as “causes of action” one, two, three, etc. in pleadings) to determine whether the alleged acts in each count are protected, not whether the essence or gravamen of the sum of the allegations in the count leans towards protected activity. (Ibid.)

Defendant JAJ1, LLC’s anti-SLAPP motion is accordingly DENIED.

Based on the dispositive result above, the Court does not address other requests or arguments before the Court, e.g., opposition request for judicial notice, first- and second-prong anti-SLAPP arguments.

Defendant JAJ1, LLC, is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party’s email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: September 1, 2026 _____

MARK C. KIM

Judge of the
Superior Court